

CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior to setting aside the judgment and resetting the Motion to Terminate. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing.

JORDAN, II VS. SITE WORK SOLUTIONS

CASE NUMBER: 25CV-0209057

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Charles David Jordan II and Counsel JS Abrams Law on July 22, 2026 for failure to timely serve the Complaint in violation of CRC 3.110(b). Counsel filed a declaration explaining the reason for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of service.

Tentative Ruling on Motion to be Relieved as Counsel: Navid Kanani of JS Abrams Law PC moves to be relieved as counsel for Plaintiff Charles David Jordan II.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case. CRC 3.1362(d). "The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." CRC 3.1362(d)(2). Counsel has not made reasonable efforts to locate a current address for Plaintiff. Additionally, there is no proof of service for the proposed Order, which is required to be served on Plaintiff.

The Motion to be Relieved as Counsel is **DENIED** without prejudice for lack of proper notice to Plaintiff. The Court is unable to modify the proposed Order submitted. Plaintiff's counsel is ordered to submit an Order consistent with the Court's ruling.

ROWEN VS. NORTHERN VALLEY CATHOLIC SOCIAL SERVICE, INC.

CASE NUMBER: 25CV-0209519

Tentative Ruling on Motion for Stay of Proceedings: Defendant Northern Valley Catholic Social Services, Inc. moves to stay these proceedings pending the outcome of *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Plaintiff Robert Rowen received proper notice of the motion and did not file an Opposition.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed July 24, 2024 and the Second Amended Complaint filed in *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. Under this Doctrine of Exclusive Concurrent Jurisdiction, when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal. App. 4th 1168. In this matter, *Thompson* was filed on July 24, 2024, which is seventeen months prior to this matter which was filed on December 29, 2025. The cases assert the same wage and hour causes of action and PAGA claim, with *Thompson* asserting one additional cause of action. The class definition for both is nearly identical. Whether the doctrine applies to PAGA actions was specifically addressed in *Shaw v. Superior Court* (2022) 78 Cal. App. 4th 245 and the Court of Appeal held that the doctrine applies to PAGA actions.

Plaintiff did not oppose the motion. The Court has not been made aware of any steps taken to coordinate the actions. The Court finds that the Doctrine of Exclusive Concurrent Jurisdiction applies to this matter and exercises its discretion to stay the *Rowen* matter pending the outcome of the *Thompson* matter.

The motion is **GRANTED**. This matter is stayed pending final adjudication of *Thompson vs. Northern Valley Catholic Social Services, Inc.* Butte County Case No. 24CV02468. When a judgment or dismissal occurs in the *Thompson* matter, Defendants must notify Plaintiff and the Court within twenty days. All future hearing dates are vacated. The matter will be on calendar on **Monday, March 1, 2027 at 9:00 a.m. in Department 63** for status of the *Thompson* matter. The parties are to file status statements no less than five court days prior to the review hearing. Defendant provided a proposed Order that will be modified to reflect the Court's ruling. Defendant is to provide notice to Plaintiff of this ruling and the future hearing date.

SATHER VS. SATHER

CASE NUMBER: 26CV-0210352

Tentative Ruling on Demurrer and Motion to Strike: Defendant Barry Sather demurs to all causes of action alleged in the Complaint filed by Plaintiff Matthew Sather and moves to strike certain portions from the Complaint. Plaintiff was properly noticed and did not file an Opposition.

Meet and Confer. Defendant provided sufficient evidence of meet and confer efforts prior to filing the Demurrer and Motion to Strike.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.

A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a).

First Cause of Action – Unjust Enrichment. The statute of limitations for an unjust enrichment claim is based on the underlying wrong. When based on an oral promise, as alleged here, an unjust enrichment claim is subject to the two year statute of limitations set forth in CCP § 339, subdivision 1. Plaintiff alleges in ¶ 30.c that the promise was made in June of 2018. Plaintiff further alleges in ¶ 15-17 that the oral promise was revoked in early January 2023. Because this Complaint was filed on April 13, 2026, the First Cause of Action was filed outside the applicable statute of limitations and the demurrer is **SUSTAINED** without leave to amend.